

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/30/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0006385

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: C. IBARRA

PLAINTIFF: LOVETT & LOVETT
ROOFING CO., INC.

vs.

DEFENDANT: SUSAN AUYANG

NATURE OF PROCEEDINGS: MOTION - ADMISSIONS – DISCOVERY FACILITATOR PROGRAM

RULING

It appears that a discovery facilitator was appointed too late to assist with this motion. Having reviewed the papers, however, it appears that Defendant Susan Auyang (“Auyang”) has now received the requested discovery responses and the motion is largely moot. Auyang, however, is still entitled to an award of sanctions. The discovery responses of Cross-Defendant Nationwide Mutual Insurance Company (“Nationwide”) were untimely and necessitated the filing of a discovery motion. This is a misuse of discovery. Auyang is therefore awarded **\$3,315 in reasonable attorney’s fees against Nationwide**. Nationwide shall make payment to counsel for Auyang within ten (10) days’ notice of this Order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for June, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/30/26 TIME: 1:30 P.M. DEPT: A CASE NO. CV0009500

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: C. IBARRA

PLAINTIFF: MALFRED C. SPENCER

vs.

DEFENDANT: MARTIN C. JOHNSON

NATURE OF PROCEEDINGS: 1) DEMURRER 2) MOTION TO STRIKE

RULING

Defendant's demurrer is **SUSTAINED** with leave to amend. Defendant's motion to strike is **GRANTED in part and DENIED in part**, with leave to amend.

Allegations in Plaintiff's Complaint

Plaintiff Malfred Spencer alleges that Defendant Martin C. Johnson hired him to be an in-home caretaker for Defendant's elderly parents. Defendant hired Plaintiff out of a homeless shelter and was aware that Plaintiff suffered from PTSD and bipolar episodes and was also aware of Plaintiff's physical limitations. Defendant paid Plaintiff only \$100 per week, which Plaintiff accepted because Defendant misled Plaintiff into believing that they shared religious beliefs. After Plaintiff worked for Defendant for two years, Defendant failed to pay Plaintiff a \$5,000 departure bonus as promised. Defendant breached his financial contract with Plaintiff, violated 18 U.S.C. Section 1584, and caused Plaintiff severe emotional distress.

Demurrer

Procedural Deficiency

Defendant fails to file a demurrer in compliance with California Rule of Court 3.1320(a), which provides that "[e]ach ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." Defendant also failed to file and serve a notice of hearing notifying Plaintiff of the date and place of the hearing on his demurrer, as required under Rule 3.1320(c).

Plaintiff does not object to these deficiencies or claim he has been prejudiced in any way. The Court will consider Defendant's demurrer but admonishes Defendant to comply with all applicable rules when filing matters with the court.

Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe*, 42 Cal.4th at 551, fn. 5.) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Statute of Limitations

Defendant argues that all three causes of action are barred by the applicable statute of limitations.

The statute of limitations for breach of an oral contract is two years. (Code Civ. Proc. § 339(1).)¹ A breach of contract cause of action ordinarily accrues at the time of breach. (See *Piedmont Capital Management, LLC v. McElfish* (2023) 94 Cal.App.5th 961, 964.) The statute of limitations for violation of 18 U.S.C. Section 1584 is ten years after the cause of action “arose”. (18 USC § 1595(c)(1).) The statute of limitations for intentional infliction of emotional distress is two years. (Code Civ. Proc. § 335.1; *Wassmann v. South Orange County Community College District* (2018) 24 Cal.App.5th 825, 852-853.) “A cause of action for intentional infliction of emotional distress accrues, and the statute of limitations begins to run, once the plaintiff suffers severe emotional distress as a result of outrageous conduct on the part of the defendant.” (*Wasserman*, 24 Cal.App.5th at p. 853 [citation omitted].)

Defendant contends that Plaintiff’s Complaint alleges that the events at issue occurred between 2005 and 2010, and therefore all of Plaintiff’s claims are untimely because Plaintiff did not file his Complaint until March 20, 2026, approximately 16 years after the last relevant event occurred.

“In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972 [citations omitted]; see also *Childs v. State of California* (1983) 144 Cal.App.3d 155, 161 [“[a] demurrer on the ground of the bar of the statute of limitations *does not lie* where the complaint merely shows that the action *may have been barred*. It must appear affirmatively that, upon the facts stated, the *right of action is necessarily barred*”] [citation omitted][emphasis in original].) “[T]here are no hard and fast rules for determining what facts or circumstances will compel inquiry by the injured party and render him chargeable with

¹ The statute of limitations for breach of written contract is four years. (Code Civ. Proc. § 337.) Plaintiff does not allege a written contract in his Complaint. If there was a written contract between the parties, this must be specifically alleged.

knowledge. [Citation.] It is a question for the trier of fact. However, whenever reasonable minds can draw only one conclusion from the evidence, the question becomes one of law.” (*Brewer v. Remington* (2020) 46 Cal.App.5th 14, 28 [citations and internal quotations omitted].)

The statutes of limitation do not clearly appear on the face of the Complaint, in large part because Plaintiff’s Complaint is ambiguous as set forth below. The demurrer is not sustained on the basis of the statute of limitations.

Ambiguity

The demurrer is sustained on the ground of ambiguity. (Code Civ. Proc. § 430.10(e).) The Complaint groups Plaintiff’s various grievances together into a single cause of action when it appears that Plaintiff intends to assert at least two, perhaps three, separate causes of action against Defendant. There are no separate elements alleged for these causes of action. Further, with respect to the breach of contract cause of action, Plaintiff is vague as to whether the contract was oral or written. The Court will grant Plaintiff leave to amend to remedy the ambiguities in his pleading.

Breach of Contract

Defendant argues that Plaintiff fails to plead the existence of an enforceable contract because there are no allegations as to “when the promise was made, by whom specifically, what the material terms were, or what consideration supported it.” (MPA, p. 4:15-16.) Plaintiff need not allege the specific date of the contract and already alleges that promises were made by Defendant. However, Plaintiff does also need to allege at least the legal effect of the contract, as well as consideration if the contract was oral. (See *Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640; *Stevenson v. San Francisco Housing Authority* (1994) 24 Cal.App.4th 269, 284.) Plaintiff has not sufficiently alleged either. Plaintiff’s allegations generally reference both weekly pay and a departure bonus but it is unclear if the alleged contract(s) covered both of these payments.

18 U.S.C. § 1584

Section 1584(a) provides in part: “Whoever knowingly and willfully holds to involuntary servitude . . . any other person for any term . . . shall be fined under this title or imprisoned not more than 20 years, or both.”

Defendant demurs to this cause of action on the ground that there is no private cause of action available for violation of this statute. However, Section 1595 expressly provides for a civil cause of action for violations of Chapter 77, which includes Section 1584. (See *Ratha v. Rubicon Resources, LLC* (9th Cir. 2026) 168 F.4th 541 [“Congress made clear in the 2008 version of § 1595(a) that any violation of the human-trafficking chapter would give rise to civil liability”].) Defendant also demurs on the ground that Plaintiff does not state sufficient facts to support a cause of action under this section. The demurrer is sustained on this basis. “When . . . the person claiming involuntary servitude is . . . free to choose the type of employment and the employer, and is also free to resign that employment if the conditions are unsatisfactory or to accept other employment, none of the aspects of ‘involuntary servitude’ which invoke the need to apply a contextual approach to Thirteenth Amendment analysis are present.” (*Moss v.*

Superior Court (1998) 17 Cal.4th 396, 416-417.) Here, Plaintiff merely alleges that he “reluctantly excepted [sic] to work for the Defendant pennies on the Dollar. Instead of \$800 a week, the Plaintiff agreed to work for \$ One hundred a week”, that Defendant created a “hostile environment”, and that Defendant “neglect[ed] to Foresee Psychological harm towards the trusting Plaintiff.” These allegations are insufficient to state a cause of action under Section 1584.

Intentional Infliction of Emotional Distress

Plaintiff references emotional distress in his Complaint, but it is not clear if he identifies this as type of damage suffered in connection with other claims or if he is asserting a cause of action for intentional infliction of emotional distress. The Court will assume the latter for purposes of this demurrer.

“The elements of a cause of action for IIED are as follows: (1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress.” (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1273.) While Plaintiff alleges that he suffered severe emotional distress, he does not allege the other elements of this cause of action or facts to support those elements. The demurrer is sustained on this basis.

Motion to Strike

Procedural Deficiency

California Rule of Court 3.1322(a) provides: “A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” Defendant’s notice of motion fails to comply with this rule.

Plaintiff does not object to this deficiency or claim he has been prejudiced. The Court will consider the motion to strike but again admonishes Defendant to comply with applicable rules for the pleadings he files with the court.

Standard

The court may, upon a motion made pursuant to Code of Civil Procedure § 435, strike out any “irrelevant, false, or improper matter inserted in any pleading.” (Cal. Code Civ. Proc. § 436.) Improperly pled damages claims may be challenged by motion to strike. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 164.)

Punitive damages are generally available where a defendant is guilty of oppression, fraud or malice. (Civ. Code § 3294(a).) “‘Malice’ is defined as ‘conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others’; ‘oppression’ is ‘despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of

that person's rights.' 'Despicable conduct' is 'conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.' [Citation.] 'The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages.... Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate.'" (*Colucci v. T-Mobile USA, Inc.* (2020) 48 Cal.App.5th 442, 454-55 [citations omitted].) Evidence of negligence, gross negligence, or even recklessness is not sufficient to support an award of punitive damages. (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 88.)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff . . . judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255 [citations omitted].) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves*, 157 Cal.App.3d at p. 166 (citations omitted).)

Punitive Damages

For the reasons discussed above in connection with the demurrer, the Complaint does not allege sufficient facts to support Plaintiff's claims and does not allege facts supporting any allegation that Defendant is guilty of oppression, fraud or malice. The motion to strike Plaintiff's request for punitive damages is therefore granted.

"\$12M 90.01"

Because Plaintiff already stated that his breach of contract claim is for \$5,000 (or \$2,500, if Plaintiff contends he received partial payment), the "\$12M 90.01" is presumably requested in connection with Plaintiff's request for emotional distress damages or punitive damages. Because a complaint cannot identify a specific amount for these types of damages, the motion to strike this amount is granted. (Code Civ. Proc. § 425.10(b); *Schwab v. Rondel Homes, Inc.* (1991) 53 Cal.3d 428, 432.)

"Irrelevant" Matter

Defendant also moves to strike the following, which he characterizes as irrelevant: "(a) References to the parties' religious beliefs, practices, and affiliations, including descriptions of Bible discussions, walks around Lake Merritt, and "Christian Brothers"; (b) References to "12 other Church Members" and religious motivations for accepting employment; (c) Characterizations of Defendant's professional credentials and tax practice that have no bearing on any cause of action; and (d) Other narrative material that does not support any element of any recognized cause of action." (MPA, p. 5.)

The Court denies the motion as to this "irrelevant" matter. As the Court reads Plaintiff's Complaint, the references to the parties' religious beliefs and practices were included to describe

Plaintiff's reason for accepting lower pay from Defendant, and the references to Defendant's credentials and background were included to indicate Defendant's superior knowledge or bargaining position over Plaintiff. These facts may ultimately be relevant for Plaintiff to prove his claims. Defendant does not identify any "other narrative material that does not support any element of any recognized cause of action" and therefore the motion is denied as to subsection (d) of his argument as well.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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